

Court No. - 21

Case :- WRIT - C No. - 34107 of 2016

Petitioner :- Vijaya Bhusan

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Keshav Dhar Tripathi

Counsel for Respondent :- Shivam Yadav

Hon'ble V.K. Shukla, Acting Chief Justice

Hon'ble Mahesh Chandra Tripathi, J.

Vijay Bhushan is before this Court and his grievance is that Executive Engineer, Vidyut Vitaran Khand, Bareilly is not accepting the the application form of the petitioner for grant of new electric connection.

The reason for non-accepting such form is absence of no objection from the landlord. U.P. Electricity Supply Code, 2005 is a self contained Code read with Electricity Act, 2003. In view of this in case the petitioner intends to move an application for grant of fresh electricity connection then he will have to fulfill the requirement as is clearly mentioned in paragraph 4.4 of U.P. Electricity Supply Code, 2005. From the form in question that has been so appended before this Court, prima facie it is reflected that all the prerequisite terms and conditions have not been fulfilled by the petitioner.

Consequently, we proceed to dispose of the present writ petition by asking the authority concerned that in case petitioner has submitted application form fulfilling all the prerequisite terms and conditions, the authority concerned shall look into the claim of the petitioner and decide the same in accordance with law expeditiously.

This order has been passed with due assistance of Sri Shivam Yadav, Advocate.

Order Date :- 26.7.2016

Ram Murti